

9:00 10	25CV480504	Amanda Butler vs. Steven Cohen, et.al.	Case off calendar
9:00 11	24CV443183	Shenna Huynh vs. REDIS LABS, Inc.	Plaintiff moves this court for monetary and terminating sanctions. Plaintiff argues that Defendant and counsel have not complied with this Court's order to serve verified supplemental response without objection, provide a privilege log, identify the documents responsive to each request, and submit a declaration addressing Slack preservation. Defendant admits that there are discrepancies with Bates misnumbering the privilege log. Defendant now admits that Slack data has been maintained since January 21, 2021 when it earlier represented that Slack data had not been preserved. Defendant asserts that it has been attempting in good faith to rectify its shortcomings. This court finds Defendant's response to be of much concern; however it does note that Defendant appears to be attempting to respond to a voluminous discovery request albeit late. Plaintiff's motion for monetary sanctions in the amount of \$10,320 against Defendants is GRANTED. Plaintiff's motion for terminating sanctions is DENIED.
9:01 1	25CV482021	AVNET, INC.,et. al. vs AMPERE COMPUTING, LLC, et.al.	Jonathan Brinson moves this court to accept his pro hac vice application to appear as counsel for Plaintiff. There is no opposition to Mr. Bronson's application. Mr. Bronson's application is GRANTED.

Calendar Line 2

Case Name: *Darcel Stoner v. SCA of CA, LLC*

Case No.: 24CV434917

Defendant SCA of CA, LLC ("SCA") has brought a motion for judgment on the pleadings ("JOP motion") as to the complaint filed by plaintiff Darcel Stoner ("Stoner"). A JOP motion "is equivalent to a belated general demurrer." (*Sprague v. County of San Diego* (2003) 106 Cal.App.4th 119, 127.) It has the same function as a general demurrer, but it is made after the time for demurrer has expired.

The court GRANTS judicial notice of Exhibit 1 to SCA's request for judicial notice. (SCA's Request for Judicial Notice ("SCA RJN"), Ex. 1.) The court may take judicial notice of records of any court of this state. (Evid. Code, § 452, subd. (d).) Notice is only taken of the existence of these documents. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 (*Oh*) [truth of contents of court records cannot be judicially noticed].)

The court GRANTS judicial notice of Exhibits 1 and 2 to Stoner's request for judicial notice. (Stoner's Request for Judicial Notice ("Stoner RJN"), Exs. 1, 2; see Evid. Code, § 452, subd. (d).) Notice is only taken of the existence of these documents. (*Oh, supra*, 53 Cal.App.5th at pp. 79-81.)

According to SCA, in 2023 Stoner filed a putative class action that remains pending. (Memorandum of Points and Authorities in Support of JOP Motion ("MPA"), p. 6:3-6; see SCA RJN, Ex. 1.) SCA argues that the present action "repackages" the failure to pay allegations at

issue in the 2023 suit, and therefore the court should grant SCA's JOP motion under California's primary rights doctrine. (MPA, p. 6:13-20.)

The primary right theory is a theory of code pleading that has long been followed in California. It provides that a "cause of action" is comprised of a "primary right" of the plaintiff, a corresponding "primary duty" of the defendant, and a wrongful act by the defendant constituting a breach of that duty. The most salient characteristic of a primary right is that it is indivisible: the violation of a single primary right gives rise to but a single cause of action. A pleading that states the violation of one primary right in two causes of action contravenes the rule against "splitting" a cause of action.

(*Crowley v. Katleman* (1994) 8 Cal.4th 666, 681 (*Crowley*), internal citations omitted.)

Crowley further states that:

The primary right theory has a fairly narrow field of application. It is invoked most often when a plaintiff attempts to divide a primary right and enforce it in two suits. The theory prevents this result by either of two means: (1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement; or (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata. The latter application of the primary right theory appears to be most common: numerous cases hold that when there is only one primary right an adverse judgment in the first suit is a bar even though the second suit is based on a different theory or seeks a different remedy.

(*Crowley, supra*, 8 Cal.4th at p. 682, internal citations omitted.)

In "determining whether more than one primary right is invaded," the court looks "to the harm suffered rather than the legal theory asserted by a plaintiff. [T]he 'cause of action' is based upon the harm suffered, as opposed to the particular theory asserted by the litigant. Even where there are multiple legal theories upon which recovery might be predicated, one injury gives rise to only one claim for relief." (*Stoner v. Williams* (1996) 46 Cal.App.4th 986, 1003, internal citations and quotation marks omitted, emphasis original). As the court discusses in more detail below, it "*is well settled that a claim alleging employment discrimination in violation of FEHA is based on a plaintiff's distinct primary right to be free from discrimination.*" (*Henderson v. Newport-Mesa Unified School Dist.* (2013) 214 Cal.App.4th 478, 502 (*Henderson*), emphasis added.)

The complaints in the present action and the 2023 punitive class action allege different harms suffered. The complaint in this action seeks redress for lost earnings, employment benefits, humiliation, emotional distress, mental and physical pain, and punitive damages on the basis of alleged discrimination and failure to prevent discrimination. (Complaint, ¶¶ 48, 51-62.) In contrast, the 2023 putative class action brought by Stoner alleges causes of action under the California Labor Code and California's unfair competition law (the "UCL"). (SCA RJN, Ex. 1

at ¶¶ 56-73; Stoner RJN, Ex. 1 at ¶¶ 71-109.) These are distinct harms. In *Barrett v. Superior Court* (1990) 222 Cal.App.3d 1176 (*Barrett*), for example, the plaintiffs brought four causes of action for negligence, strict liability, breach of implied warranty, and wrongful death, all on the basis of “the injury they had suffered as a result of the wrongful death of the decedent . . . the four ‘causes of action’ were actually counts based on the same primary right of plaintiffs and the same primary duty of defendants, each of which merely alleged additional circumstances out of which the primary right and primary duty arose.” (*Barrett, supra*, 222 Cal.App.3d at pp. 1181-1182, internal citations omitted.) Here, the complaint alleges harms suffered as a result of discrimination—lost earnings, emotional distress, and mental and physical pain and anguish—while the 2023 punitive class action alleges liability under the UCL and California Labor Code and seeks injunctive relief and unpaid wages.

Henderson is informative. In *Henderson*, the plaintiff, a teacher, sued the defendant, a school district, alleging discrimination under FEHA. (*Henderson, supra*, 214 Cal.App.4th at p. 484.) The trial court sustained the defendant’s demurrer to the plaintiff’s FEHA cause of action on the basis that it was barred by the doctrine of res judicata. (*Ibid.*) The trial court “reasoned that both claims were founded on the same primary right placed at issue in [an] earlier administrative proceeding. . . . In the trial court’s view, the primary right at issue in both the administrative proceeding and the claims Henderson currently asserts was her right to be ‘reemployed for the 2010/2011 school year.’” (*Id.* at p. 499.) The Court of Appeal disagreed. A “plaintiff’s primary right is defined by the *legally protected interest* which is harmed by defendant’s wrongful act, and is not necessarily coextensive with the *consequence* of that wrongful act. Nor is it defined by the *remedy* the plaintiff seeks. . . . [I]t is well settled that a claim alleging employment discrimination in violation of FEHA is based on a plaintiff’s distinct primary right to be free from discrimination.” (*Henderson, supra*, 214 Cal.App.4th at pp. 499-502, internal citations and quotation marks omitted, emphasis original.)

The court reiterates that it “is well settled that a claim alleging employment discrimination in violation of FEHA is based on a plaintiff’s distinct primary right to be free from discrimination.” (*Henderson, supra*, 214 Cal.App.4th at p. 502; see also *ibid.* [“Because Henderson’s cause of action alleging the District discriminated against her on the basis of race in violation of FEHA was based on her distinct primary right to be free from such discrimination—a right which was not adjudicated in the earlier administrative proceeding—that cause of action is not barred by res judicata.”].) According to SCA, a “particularly instructive” decision is *Lane v. Stausboll* (N.D. Cal. Apr. 28, 2011) 2011 U.S. Dist. LEXIS 47697 (*Lane*). (MPA, p. 12:3-23.) In *Lane*, the plaintiff filed suit against representatives of the California Public Employee’s Retirement System (“CalPERS”) alleging that CalPERS miscalculated the plaintiff’s pension payments. (*Lane, supra*, LEXIS 47697 at p. 1.) The Northern District of California found that the plaintiff’s “primary right” was “his right to have his pension calculated according to law.” (*Id.* at p. 12.) In a previous action, the plaintiff argued that CalPERS “should have calculated his pension according to [Government Code section] 20035(a).” (*Id.* at p. 17.) In the lawsuit at issue, the plaintiff then argued that CalPERS “should have calculated his pension according to [Government Code section] 31461.3(a).” (*Ibid.*) The Northern District of California found that the alleged harm to the plaintiff was “based on CalPERS’s calculation of his pension using 12 months instead of 7.5 months, and this is exactly the issue that was taken up during the state proceedings.” (*Id.* at p. 19.) Here, the complaint alleges discrimination under FEHA on the

basis that SCA employed Stoner as a “street sweeper operator” and, on the basis of his race, paid other street sweeping employees more and transferred Stoner to other cities for street sweeping work to demote Stoner and avoid paying him “prevailing wage rates.” (Complaint, ¶¶ 21-32, 43-54.) Following *Henderson*, this is a different primary right than any at issue in the 2023 putative class action, and therefore the court finds that *Lane*, and, for that matter, much of the authority discussed by SCA in its memorandum, is distinguishable. (MPA, pp. 12:24-14:9.)

For similar reasons, the court is also not persuaded by the decisions cited by SCA on reply. (SCA’s Reply in Support of JOP Motion, pp. 7:8-9:24.) For example, the plaintiff in *Balasubramanian v. San Diego Community College Dist.* (2000) 80 Cal.App.4th 977 (*Balasubramanian*) sued the defendant in federal court, alleging employment discrimination and breach of contract. (*Balasubramanian*, *supra*, 80 Cal.App.4th at pp. 981-982.) After trial, a jury found in favor of the defendant on the plaintiff’s discrimination claims, but the court dismissed the claim for breach of contract. (*Id.* at p. 982.) The plaintiff then brought an action for breach of contract in state court. (*Ibid.*) The trial court granted the defendant’s motion for summary judgment as to the plaintiff’s breach of contract cause of action on the grounds that it was barred by the doctrine of res judicata, and the Court of Appeal affirmed. (*Id.* at p. 982, 992-993.) The Court of Appeal held that the plaintiff’s “claims in both federal and state court resulted from [the defendant’s] failure to hire her as assistant professor.” (*Id.* at p. 992.) “Although [the plaintiff’s] theory in federal court was discrimination and her theory in state court was breach of contract, both actions involved the primary right to be employed by [the defendant].” (*Ibid.*, internal citations omitted.) The decision does not address the circumstances here, i.e., the primary right underlying a FEHA cause of action—a “plaintiff’s distinct primary right to be free from discrimination.” (*Henderson*, *supra*, 214 Cal.App.4th at p. 502.)

The court acknowledges SCA’s point regarding the potential for overlapping damages. (MPA, pp. 17:1-18:24.) “A well-established principle, applied both at law and in equity, is that a plaintiff is entitled to only a single recovery for a distinct harm suffered, and double or duplicative recovery for the same harm is prohibited.” (*Renda v. Nevarez* (2014) 223 Cal.App.4th 1231, 1237 (*Renda*), internal citation omitted.) The complaint seeks damages for lost earnings and employment benefits; the 2023 putative class action alleges, among other things, a “failure to pay prevailing wages.” (Complaint, ¶¶ 51, 59; SCA RJN, Ex. 1 at ¶¶ 56-64, 71; Stoner RJN, Ex. 1 at ¶¶ 71-81.)

Nevertheless, the court is inclined to agree with Stoner’s argument in opposition that while “California law prohibits double recovery for the same injury . . . that principle does not mean every case with some overlap in economic damages must be dismissed at the pleadings stage.” (Opposition, p. 9:12-18, internal citations omitted.) SCA does not provide the court with any authority indicating otherwise.

In fact, the court notes that the authorities cited by SCA in its memorandum concern the Court of Appeal addressing issues related to a trial court’s determination of damages, not whether a court can determine a pleading challenge on the basis of the primary right theory and potential issues surrounding double recovery. (*Sass v. Cohen* (2019) 32 Cal.App.5th 1032, 1035 [“Applying these principles, the default judgment awarding compensatory damages of \$2,806,532 . . . we remand to the trial court . . .”]; *Renda*, *supra*, 223 Cal.App.4th at p. 1234

[“After the jury returned its verdict, Renda submitted a proposed judgment . . . Nevarez objected on the grounds . . . [that] such a judgment would amount to an impermissible double recovery to the creditor.”]; *Sanchez v. Martinez* (2020) 54 Cal.App.5th 535, 540 [“Both parties now raise various challenges to the trial court’s calculation of damages and penalties. . . .”]; *Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, 1595 [“In response to defendants’ motion for new trial, the superior court entered an amended judgment . . . Defendants appeal from both the original and amended judgments.”].) As to *City of Moorpark v. Superior Court* (1998) 18 Cal.4th 1143 (*Moorpark*), the Court of Appeal noted that “employees who settle their claims for lost wages and work benefits as part of a section 132a proceeding could not recover these damages as part of a subsequent FEHA proceeding.” (*Moorpark, supra*, 18 Cal.4th at p. 1158.) It did not hold that a party could not bring a FEHA cause of action on the basis of potentially overlapping damages.

The court DENIES SCA’s JOP motion.

Calendar Line 9

Case Name: Gabrielle Hubbard v. Ford Motor Company et al.

Case No.: 25CV468878

Plaintiff Gabrielle Hubbard (Plaintiff) purchased a 2022 Ford Bronco Sport (Subject Vehicle) in September 2022 from Ford of Chula Vista (Dealership). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47.) Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 49.) Plaintiff sued Dealership and Ford Motor Company in June 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD